

Plaintiffs' arguments that the Arbitration Agreement's provision does not encompass the incident giving rise to this lawsuit must accordingly be decided by the arbitrator.

Severance in the Alternative:

In the alternative, Plaintiffs request the court to sever this action as to Airbnb only and allow the remainder of the civil suit to proceed against the remaining defendants. In reply, Airbnb states it does not oppose Plaintiffs' alternative request that the arbitrable claims be severed and the claims against the other defendants proceed separate in Court. (Reply., pg. 8:28-9:1.) However, this severance request needs to be addressed in a separate motion.

Plaintiff's Evidentiary Objection #1 to Declaration of Greg Anderson SUSTAINED.

Plaintiff's Evidentiary Objections 2-4 to Declaration of Greg Anderson OVERRULED.

Plaintiff's Evidentiary Objections 1-2 to Supplemental Declaration of Greg Anderson SUSTAINED.

Defendant Airbnb, Inc's Motion to Compel Arbitration and Stay Proceedings GRANTED.

The entire case is stayed, a status hearing re arbitration is set for February 19, 2027.

Case Management Conference is vacated.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2603344	ISAAC VS EISENHOWER MEDICAL CENTER	DEMURRER ON COMPLAINT OF BYRON KENT ISAAC BY EISENHOWER MEDICAL CENTER

Tentative Ruling: No tentative ruling.

The hearing on the demurrer is continued to October 15, 2026. The parties are ordered to ***meet and confer via in person, teleconference or phone*** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- 1) Defendant vacate the hearing on the demurrer, and file an Answer;

- 2) The Parties file with the court a joint declaration stating the parties have agreed that Plaintiff will file an amended complaint before the date set forth above; or
- 3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (C.C.P. § 430.41(a)(3), C.C.P. § 435.5(a)(3).)

The court will not accept further briefing. Failure to comply will result in sanctions.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2603344	ISAAC VS EISENHOWER MEDICAL CENTER	MOTION TO STRIKE COMPLAINT OF BYRON KENT ISAAC BY EISENHOWER MEDICAL CENTER

Tentative Ruling: No tentative ruling. Hearing is continued for proper meet and confer and referenced above.